

(h) Except as provided in § 219.201 (with respect to non-qualifying events), each specimen (including each split specimen) provided under this subpart is retained for not less than three months following the date of the accident or incident (two years from the date of the accident or incident in the case of a specimen testing positive for alcohol or a controlled substance). Post-mortem specimens may be made available to the National Transportation Safety Board (on request).

(i) An employee (donor) may, within 60 days of the date of the toxicology report, request that his or her split specimen be tested by the designated laboratory or by another laboratory certified by Health and Human Services under that Department's Guidelines for Federal Workplace Drug Testing Programs that has available an appropriate, validated assay for the fluid and compound declared positive. Since some analytes may deteriorate during storage, detected levels of the compound shall, as technically appropriate, be reported and considered corroborative of the original test result. Any request for a retest shall be in writing, specify the railroad, accident date and location, be signed by the employee/donor, be addressed to the Associate Administrator for Safety, Federal Railroad Administration, Washington, DC 20590, and be designated "ADMINISTRATIVELY CONFIDENTIAL: ATTENTION ALCOHOL/DRUG PROGRAM MANAGER." The expense of any employee-requested split specimen test at a laboratory other than the laboratory designated under this subpart shall be borne by the employee.

§ 219.213 Unlawful refusals; consequences.

(a) *Disqualification.* An employee who refuses to cooperate in providing breath, blood or urine specimens following an accident or incident specified in this subpart must be withdrawn from covered service and must be deemed disqualified for covered service for a period of nine (9) months in accordance with the conditions specified in § 219.107.

(b) *Procedures.* Prior to or upon withdrawing the employee from covered service under this section, the railroad

must provide notice of the reason for this action and an opportunity for hearing before a presiding officer other than the charging official. The employee is entitled to the procedural protection set out in § 219.104(d).

(c) *Subject of hearing.* The hearing required by this section must determine whether the employee refused to submit to testing, having been requested to submit, under authority of this subpart, by a representative of the railroad. In determining whether a disqualification is required, the hearing official shall, as appropriate, also consider the following:

(1) Whether the railroad made a good faith determination, based on reasonable inquiry, that the accident or incident was within the mandatory testing requirements of this subpart; and

(2) In a case where a blood test was refused on the ground it would be inconsistent with the employee's health, whether such refusal was made in good faith and based on medical advice.

Subpart D—Testing for Cause

§ 219.300 Mandatory reasonable suspicion testing.

(a) *Requirements.* (1) A railroad must require a covered employee to submit to an alcohol test when the railroad has reasonable suspicion to believe that the employee has violated any prohibition of subpart B of this part concerning use of alcohol. The railroad's determination that reasonable suspicion exists to require the covered employee to undergo an alcohol test must be based on specific, contemporaneous, articulable observations concerning the appearance, behavior, speech or body odors of the employee.

(2) A railroad must require a covered employee to submit to a drug test when the railroad has reasonable suspicion to believe that the employee has violated the prohibitions of subpart B of this part concerning use of controlled substances. The railroad's determination that reasonable suspicion exists to require the covered employee to undergo a drug test must be based on specific, contemporaneous, articulable observations concerning the appearance, behavior, speech or



Permits For Relocating a Building

• FREQUENTLY ASKED QUESTIONS •

*Visit the DDES Web site at
www.metrokc.gov/ddes
for more information*

DDES Customer
Information Bulletin #

35

King County DDES has created customer information bulletins to inform the general public about the effect of codes and regulations on their projects. These bulletins are not intended to be complete statements of all laws and rules and should not be used as substitutes for them. If conflicts and questions arise, current codes and regulations are final authority. Because the codes and regulations may be revised or amended at any time, consult King County staff to be sure you understand all requirements before beginning work. It is the applicant's responsibility to ensure that the project meets all requirements of applicable codes and regulations.

Alternative formats available upon request

Building Relocation Permits For Residential and Commercial Structures

This bulletin outlines what is required to obtain a permit to relocate a building that will be used for residential or commercial purposes. Two separate permits are needed for building relocation: The first permit, a Relocation Investigation Permit, provides for inspection of the building to be relocated. If the building is determined to be eligible for relocation, then the second permit, a Building Relocation Permit, may be obtained.

All building relocation permits must comply with the following State and King County codes and regulations:

- 1) Uniform Building Code;
- 2) Uniform Mechanical Code;
- 3) Uniform Fire Code;
- 4) King County Code [Title 21A of the King County Code (KCC)];
- 5) King County Critical Areas Ordinance and Administrative Rules [Chapter 21A.24 of the King County Code (KCC)];
- 6) King County Surface Water Design Manual;
- 7) King County Road Standards;
- 8) Washington State Energy Code and Ventilation and Indoor Air Quality Code;
- 9) Shoreline Management Act;
- 10) Other King County Ordinances and Regulations; and
- 11) Other Washington State Ordinances and Regulations.

Building Relocation Investigation Permits

If customers are planning to relocate a building in King County, an assessment of that building and the prospective site for relocation is required before applying for a building permit. This assessment is accomplished through a Relocation Investigation Permit.

Customers may apply for a Relocation Investigation Permit at the Permit Center of the King County Department of Development and Environmental Services (DDES) offices in Renton, Washington, or at one of our satellite offices. For the locations and operating hours of satellite offices, call 206-296-6600. To schedule an appointment to apply for a Relocation Investigation Permit, please call the Permit Center Appointment Desk at 206-296-6797.

To apply for a Relocation Investigation Permit, customers must provide the following information:

- The current address, Parcel Number and location of the building to be relocated;
- The legal description or Parcel Number of the site where the building is to be relocated;
- An Affidavit of Application; and
- A site plan of the site, showing the current location of the building.

An inspection report regarding the proposed building relocation will be prepared and given to the project applicant.

Building Relocation Permits

If the relocation investigation indicates that a proposed building is eligible for relocation, customers may then apply for a Building Relocation Permit. This permit will be processed and reviewed in the same way as a permit for a new residential or commercial project and will be subject to any code reviews and restrictions applicable to the new site. These reviews and restrictions may include SEPA, critical areas, shorelines, drainage, traffic, noise, etc.

To apply for a Building Relocation Permit, please call 206-296-6797 to schedule a permit application appointment. When coming for an appointment, be sure to bring a copy of the Relocation Investigation Permit Report. In addition, customers must provide all the information required for a complete permit application. (See Bulletin 9, *Obtaining a Residential Building Permit*, for complete application requirements for single-family residential projects, and see Bulletin 8, *Commercial and Multi-family Building Permits*, for complete application requirements for commercial and multi-family projects.)

The Relocation Investigation Report requires either a Full Plans Submittal for the building, or, if only minimal or no changes to the building are required, a Limited Plans Submittal. A Full Plans Submittal for the foundation and site is required in all circumstances.

What Resource Information Is Available?

King County Information Bulletins, Affidavit of Application Forms, and Owner's Affidavit Forms are all available at the King County DDES Permit Center at the Renton office location and at satellite offices. Forms are also available via the DDES Web site at www.metrokc.gov/ddes, the DDES Customer Information Line at 206-296-6600 and in the DDES Permit Center in Renton, Washington.

If customers have a question regarding a building relocation project that was not answered by this bulletin, or if additional information is needed, please contact the Permit Center of DDES at 206-296-6600.

Other Bulletins and Telephone Numbers That May Be Helpful

Bulletin 1	Building and Development Permit Telephone Numbers
Bulletin 6	Working With Contractors
Bulletin 8	Commercial/Multi-Family Building Permits
Bulletin 9	Obtaining a Residential Building Permit
Bulletin 10	Residential Building On or Near Waterfront
Bulletin 12	The Residential Building Permit Process
Bulletin 21	Critical Area Review
Bulletin 29	Drainage Review
Bulletin 40	Financial Guarantees

These and other DDES bulletins are available via the department Web site at www.metrokc.gov/ddes.

206-296-6600	DDES Information
206-296-6797	DDES Appointment Desk
206-296-6630	Building Inspection Services
206-296-6635	24-Hour Inspection Request Line

Be sure to visit our Web site at:
www.metrokc.gov/ddes



King County complies with the Americans with Disabilities Act (ADA). If you require an accommodation to attend a meeting (two weeks' notice) or require this information in Braille, audiocassette, or large print, please call 206-296-6600 or TTY 206-296-7217.



Notices

Federal Register

Vol. 70, No. 70

Wednesday, April 13, 2005

This section of the FEDERAL REGISTER contains documents other than rules or proposed rules that are applicable to the public. Notices of hearings and investigations, committee meetings, agency decisions and rulings, delegations of authority, filing of petitions and applications and agency statements of organization and functions are examples of documents appearing in this section.

DEPARTMENT OF AGRICULTURE

Submission for OMB Review; Comment Request

April 7, 2005.

The Department of Agriculture has submitted the following information collection requirement(s) to OMB for review and clearance under the Paperwork Reduction Act of 1995, Public Law 104-13. Comments regarding (a) whether the collection of information is necessary for the proper performance of the functions of the agency, including whether the information will have practical utility; (b) the accuracy of the agency's estimate of burden including the validity of the methodology and assumptions used; (c) ways to enhance the quality, utility and clarity of the information to be collected; (d) ways to minimize the burden of the collection of information on those who are to respond, including through the use of appropriate automated, electronic, mechanical, or other technological collection techniques or other forms of information technology should be addressed to: Desk Officer for Agriculture, Office of Information and Regulatory Affairs, Office of Management and Budget (OMB), *OIRA_Submission@omb.eop.gov* or fax (202) 395-5806 and to Departmental Clearance Office, USDA, OCIO, Mail Stop 7602, Washington, DC 20250-7602. Comments regarding these information collections are best assured of having their full effect if received within 30 days of this notification. Copies of the submission(s) may be obtained by calling (202) 720-8958.

An agency may not conduct or sponsor a collection of information unless the collection of information displays a currently valid OMB control number and the agency informs potential persons who are to respond to the collection of information that such persons are not required to respond to

the collection of information unless it displays a currently valid OMB control number.

Agricultural Marketing Service

Title: Regulations Governing the Voluntary Grading of Shell Eggs.

OMB Control Number: 0581-0128.

Summary of Collection: The Agricultural Marketing Act of 1946 (60 Stat. 1087-1091, as amended; 7 U.S.C. 1621-1627) (AMA) directs and authorizes the Department to develop standards of quality, grades, grading programs, and services to enable a more orderly marketing of agricultural products so trading may be facilitated and so consumers may be able to obtain products graded and identified under USDA programs. The Agricultural Marketing Service (AMS) carries out regulations, which provide a voluntary program for grading shell eggs on the basis of U.S. standards, grades, and weight classes. In addition, the shell egg industry and users of the products have requested that other types of voluntary services be developed and provided under these regulations. This program is voluntary where respondents would need to request or apply for the specific service they wish.

Need and Use of the Information: Only authorized representatives of the USDA used the information collected. The information is used to administer, conduct and carry out the grading services requested by the respondents. If the information were not collected, the agency would not be able to provide the voluntary grading service authorized and requested by congress, provide the types of services requested by industry, administer the program, ensure properly grade-labeled products, calculate the cost of the service or collect for the cost furnishing service.

Description of Respondents: Business or other for profit; Federal Government; State, Local or Tribal Government.

Number of Respondents: 623.

Frequency of Responses: Reporting: On occasion; semi-annually; monthly; annually; other (daily).

Total Burden Hours: 5,630.

Ruth Brown,

*Departmental Information Collection
Clearance Officer.*

[FR Doc. 05-7339 Filed 4-12-05; 8:45 am]

BILLING CODE 3410-02-M

DEPARTMENT OF AGRICULTURE

Food and Nutrition Service

**Agency Information Collection
Activities: Proposed Collection;
Comment Request: Uniform Grant
Application Package for Discretionary
Grant Programs (Form FNS 728)**

AGENCY: Food and Nutrition Service, USDA.

ACTION: Notice.

SUMMARY: In accordance with the Paperwork Reduction Act of 1995, this notice invites the general public and other public agencies to comment on proposed information collections. The proposed collection is a revision of a currently approved collection.

The purpose of the Uniform Grant Application Package for Discretionary Grant Programs is to provide a standardized format for the development of all Requests for Applications released by the Food and Nutrition Service (FNS) Agency and to allow for a more expeditious OMB clearance process.

DATES: Written comments must be submitted on or before June 13, 2005.

ADDRESSES: Comments are invited on (a) whether the proposed collection of information is necessary for the proper performance of the functions of the agency, including whether the information has practical utility; (b) the accuracy of the agency's estimate of the burden of the proposed collection of information, including the validity of the methodology and assumptions that were used; (c) ways to enhance the quality, utility, and clarity of the information to be collected; and (d) ways to minimize the burden of the collection of information on those who are to respond, including the use of appropriate automated, electronic, mechanical, or other technological collection techniques or other forms of information technology. Comments may be sent to Lael J. Lubing, Director, Grants Management Division, U.S. Department of Agriculture, Food and Nutrition Service, 3101 Park Center Drive, Room 732, Alexandria, VA 22302.

All responses to this notice will be summarized and included in the request for OMB approval. All comments will also be a matter of public record.